

SC.5 Forms & Documents Index

Every document you will meet, what it does, when it is due, and which office it comes from.

Before you use this document

This is a process reference, not legal advice. South Carolina is a mandatory-enforcement state: § 6-9-10 orders every municipality and county to enforce the state code, and to enforce *only* that code, so the question that dominates most states in this series — will anyone inspect this house? — has a statutory answer here. What South Carolina replaces it with is a stack of small obligations with hard consequences: a disclosure you sign in person, a notice you file at the register of deeds afterwards, an energy code fixed by statute rather than by the code council, and a coastline the law forbids anyone to describe county by county. Fees, portals, review queues and the extra permits your particular lot triggers still vary. Confirm every item with the office that will actually handle your parcel before you rely on it.

THE DOCUMENTS, IN THE ORDER YOU MEET THEM

The document trail, start to finish

Document	What it is	When	From
Owner-builder disclosure statement	The statement the permitting agency must give you, whose wording § 40-59-260(C) prints. Read it: it may say more than the statute does.	At the counter, when you sign	Building department
Building permit application	You must personally appear and sign it to claim the exemption. Chapter 11 separately requires an exempt owner to list the name and license number of every licensed contractor on the project (§ 40-11-420(C)).	Before work	Building department
Register-of-deeds notice forms	The agency must give you “all forms necessary” for the § 40-59-260(E) filing at the moment you sign. Ask for them by name.	Same visit	Building department
Septic construction permit	Site evaluation and permit for an onsite wastewater system. Several counties will not issue a building permit without a copy.	Before the permit	SCDES

The document trail, start to finish

Document	What it is	When	From
Well permit	For a private drinking water well. Different bureau from septic, same agency.	Before drilling	SCDES
Critical area or beachfront authorization	A separate state approval for coastal parcels. Nobody local will chase it for you.	Before the permit	SCDES Coastal
Plat or survey	Richland County, among others, asks for a copy of the property plat at application. Also how you prove setbacks.	At application	Surveyor
Construction drawings and site plan	To your office's scale and content rules. The design criteria on SC.2 belong on the drawings.	At application	You or your designer
Farm structure affidavit	Only if you are building a barn or shed under § 6-9-65, and it must be filed before construction to work at all.	Before that build	Building department
Notice of Project Commencement	Optional, \$15, and it preserves the statutory cap on second-tier liens. Fifteen days from starting work.	Within 15 days of start	Clerk of court or register of deeds
Location notice at the job site	Posted if a Notice of Project Commencement is filed, carrying the wording the statute prescribes, along with the contractor's name and address.	With the above	You post it
Truss design drawings	Must arrive with the truss shipment and be given to the building official at the time of inspection. Twelve enumerated contents.	At delivery and at framing	Truss supplier
Termite treatment record	Establish early who produces it and who wants to see it. The state code's added treatment route runs through the Clemson University Department of Pesticide Regulation.	Before slab or backfill	Treatment provider
Energy compliance documentation	To the 2009 IECC , which is the Energy Standard set by statute — not to the residential code's energy chapter, which South Carolina does not adopt.	As your office requires	You or your designer

The document trail, start to finish

Document	What it is	When	From
Elevation certificate	If the parcel is in a mapped flood hazard area. Coastal A Zones are inside the state's flood provisions.	As required	Surveyor
Certificate of occupancy	Required before occupancy, and statutory proof of substantial completion — which starts the eight-year repose clock.	At the end	Building department
Register-of-deeds notice	The filing stating the structure “was constructed by the owner as an unlicensed builder.” Failure to file revokes the exemption. Some counties record it at the front of the job instead.	Promptly after — or before the permit, locally	Register of deeds

WORK THAT NEEDS NO PERMIT AND NO CREDENTIAL

Most states leave this list to the local code official. South Carolina wrote it into the licensing chapter, where nobody looks: § 40-59-265, added by 2022 Act No. 186 effective 16 May 2022. Subsection (B) is the operative sentence — the listed improvements “are exempt from building permit application requirements and an owner of residential property who makes these improvements is not required to have a residential builder or residential specialty contractor's license or be subject to the penalties provided in this chapter.”

S.C. Code Ann. § 40-59-265(A) — the statewide list

	Exempt work
Building	One-story detached accessory structures with floor area not exceeding 200 square feet · fences not over 7 feet high · retaining walls not over 4 feet measured from the bottom of the footing to the top of the wall, unless supporting a surcharge · water tanks supported directly on grade with capacity not exceeding 5,000 gallons and a height-to-width ratio not exceeding 2:1 · sidewalks and driveways · painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work · prefabricated swimming pools less than 24 inches deep · swings and other playground equipment · window awnings on an exterior wall projecting not more than 54 inches and needing no additional support · decks not exceeding 200 square feet and not more than 30 inches above grade at any point
Electrical	Listed cord-and-plug connected temporary decorative lighting · reinstallation of attachment plug receptacles but not the outlets · replacement of branch circuit overcurrent devices of the required capacity in the same location · wiring, devices, appliances or equipment operating at less than 25 volts and not capable of supplying more than 50 watts · minor repair work including lamp replacement and connecting approved portable equipment to approved permanently installed receptacles

S.C. Code Ann. § 40-59-265(A) — the statewide list

	Exempt work
Gas	Portable heating, cooking or clothes drying appliances · replacement of a minor part that does not alter approval of equipment or make it unsafe · portable fuel-cell appliances not connected to a fixed piping system and not interconnected to a power grid
Mechanical	Portable heating, ventilation and cooling appliances · steam, hot- or chilled-water piping within regulated heating or cooling equipment · replacement of a minor part · portable evaporative coolers · self-contained refrigeration systems containing 10 pounds or less of refrigerant or actuated by motors of 1 horsepower or less · portable fuel-cell appliances
Plumbing	Stopping leaks in drains, water, soil, waste or vent pipe — but “if any concealed trap, drainpipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the same with new material, such work must be considered as new work and a permit must be obtained” · clearing stoppages, repairing leaks in pipes, valves or fixtures, and removing and reinstalling water closets, provided the repairs do not involve replacing or rearranging valves, pipes or fixtures

Two cautions. This is an exemption from the **permit** and from **Chapter 59 licensing**. It is not an exemption from zoning, from setbacks, from a homeowners' association, or from the flood ordinance — and a 200-square-foot shed still has to sit where your zoning lets it sit. Second: your local office may publish its own exempt-work list. Oconee County does. Where the two differ, the statute is the floor and the local list is what the counter will actually apply, so ask.

THE RECORDS TO KEEP, AND FOR HOW LONG

South Carolina's outside limit on construction-defect claims is **eight years** from substantial completion (§ 15-3-640), and your certificate of occupancy is what proves that date. Keep the following together for at least that long — the file is also what answers a buyer who finds your register-of-deeds notice in the title search.

The file

	Item	Date	Notes
☐	The permit card or printout, with the issuance date legible — it fixes your code edition Permit no. _____		
☐	Approved plans as stamped, and any revisions approved during the build		
☐	Every inspection result, including the ones that failed and the correction that followed		
☐	The signed owner-builder disclosure statement		

The file

	Item	Date	Notes
☐	The recorded register-of-deeds notice, with its book and page Book / page _____		
☐	Certificate of occupancy Date _____		
☐	Septic permit and final approval; well completion record and water test results		
☐	Truss design drawings and any engineered element calculations		
☐	Termite treatment record and warranty		
☐	Every contractor's license or registration number, captured at the time you hired them		
☐	Lien waivers or receipts for everyone you paid		
☐	Any written answer an office gave you — wind speed, seismic category, exempt-work list, homeowner trade permits		

WHAT THIS KIT DELIBERATELY DOES NOT PRINT

Some numbers are asked for constantly and cannot honestly be printed in a document that will sit in a binder for a year. Here is what was left out, why, and the question to ask instead.

Left out on purpose — and what to ask instead

	Why	Ask this
Permit fees	No statewide schedule exists. Each county and municipality sets its own on a simple majority vote (§ 6-9-90), and several revise annually.	“What is the total permit and plan review fee for a new single-family dwelling of this square footage and valuation?”
Review and inspection timelines	Not set by statute, and they swing with staffing and season.	“What is your current plan review turnaround, and how much notice do you need for an inspection?”
Design wind speed by county	The code sends you to Council maps as delineated by your own building official, and a statute forbids drawing climatological boundaries on political lines (§ 6-9-105(C)).	“What ultimate design wind speed and exposure category apply to this parcel, and is it in a wind-borne debris region?”

Left out on purpose — and what to ask instead

	Why	Ask this
Seismic design category	Same mechanism as wind — a map question your building official delineates, bounded by the ATC data the regulation names.	“What seismic design category applies to this parcel?”
License and registration fees	Published in a regulation and separately on the agency's website, and the two do not always agree. Not needed by an exempt owner in any case.	Check llr.sc.gov directly if you ever need one.
Construction cost ranges	Septic, well and construction cost figures move faster than anything else in this subject and vary more by site than by state.	Get three quotes for the actual parcel.
Which jurisdictions have opted out of enforcement	The § 6-9-30(B) affidavit route exists, but the Building Codes Council publishes no roster of who holds one.	“Has this jurisdiction filed a § 6-9-30(B) affidavit with the Building Codes Council?”
Phone numbers	They change more often than anything else on a printed page, and every office publishes current ones.	Use the hosts and navigation paths on SC.4.

SOURCES

Sources — every South Carolina claim in this document (verified September 2026)

What this document states	Authority
The disclosure statement, the personal appearance, the forms the agency must provide, and the register-of-deeds notice	S.C. Code Ann. § 40-59-260
An exempt owner must obtain the permit and list every licensed contractor on the application	S.C. Code Ann. § 40-11-420(C)
The statewide list of work exempt from permit and from licensing	S.C. Code Ann. § 40-59-265
Farm structure affidavit, filed before construction	S.C. Code Ann. § 6-9-65
Notice of Project Commencement and the posted location notice	S.C. Code Ann. § 29-5-23
Eight-year repose; the certificate of occupancy as proof of substantial completion	S.C. Code Ann. § 15-3-640
The 2009 IECC is the Energy Standard; the residential code's energy chapter is not adopted	S.C. Code Ann. § 6-10-30; S.C. Code of Regs. 8-1230

Sources — every South Carolina claim in this document (verified September 2026)

What this document states	Authority
Truss drawings with the shipment and at inspection; the termite treatment route	S.C. Code of Regs. 8-1224, 8-1227, 8-1215
Permit fees are set locally by simple majority vote	S.C. Code Ann. § 6-9-90
Climatological boundaries may not follow political lines	S.C. Code Ann. § 6-9-105(C)

Everything cited here is free to read, in three places. Statutes (**S.C. Code Ann. § 40-59-260**) are at **scstatehouse.gov** → Code of Laws, and the whole chapter loads at one address you can type directly — scstatehouse.gov/code/t40c059.php, where **t40** is the Title and **c059** the chapter, zero-padded to three digits. Titles used here: **6** local government (building codes, the Energy Standard Act), **15** the eight-year repose, **29** mechanics' liens, **40** licensing, **44** health, **48** the coast. Regulations are at **scstatehouse.gov/coderegs/**, by chapter number. **One warning when you look something up:** a search engine will still hand you pages naming **DHEC**, an agency that ceased to exist in 2024 — check the masthead of any septic, well or coastal page you land on before you trust it. Read September 2026.